

26VECV01491 26VECV01491

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-11

Motion: PLAINTIFF'S ANTISLAPP MOTION TO STRIKE DEFENDANT'S CROSS-COMPLAINT

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Case Number: 26VECV01491 Hearing Date: September 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MIA CAMILLAH, an

individual,

Plaintiffs,

vs.

A.K. GROUP, LLC, a California limited

liability company; and DOES 1-10,

Defendants.

CASE NO: 26VECV01491

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

ANTISLAPP MOTION TO STRIKE DEFENDANT'S CROSS-COMPLAINT

Dept. W

8:30 a.m.

September 11, 2026

[TENTATIVE] ORDER: The Court

TENTATIVELY GRANTS Cross-Defendant's Anti-SLAPP Motion to Strike the Cross-Complaint. The Court TENTATIVELY GRANTS Cross-Defendant's request for \$3,365.02 in costs.

Background

This is a FEHA case. Plaintiff/Cross-Defendant Mia Camillah alleges that on September 26, 2024, she applied to live at a property owned and controlled by Defendant/Cross-Complainant A.K. Group, LLC. Cross-Defendant alleges that she qualifies for Section 8 Housing Choice Voucher rental assistance. Cross-Defendant further alleges that Cross-Complainant discriminated against Cross-Defendant by denying her application due to her status as a Section 8 recipient.

On March 12, 2026, Cross-Defendant filed suit, alleging five causes of action: 1) Fair Employment and Housing Act, Cal. Gov't Code § 12955 subdivs. (a), (d), (g) and (k); 2) Unruh Civil Rights Act, Cal. Civ. Code § 51 et seq.; 3) Negligence, Cal. Civil Code §1714; 4) Los Angeles Municipal Code, Chapter IV, Article 5.6.1; and 5) Unfair Business Practices, Business and Professions Code § 17200.

On May 14, 2026, Defendant (now Cross-Complainant) filed a Cross-Complaint against Plaintiff (now Cross-Defendant). The Cross-Complaint raises claims of both negligent and intentional misrepresentation. Specifically, Cross-Complainant alleges that Cross-Defendant misrepresented her Section 8 qualifications so that she could file a lawsuit against Cross-Complainant.

Now, Cross-Defendant brings this Anti-SLAPP Motion against Cross-Complainant's Cross-Complaint.

Discussion

Cross-Defendant moves to strike both claims raised in Cross-Complainant's Cross-Complaint under CCP § 425.16.

Anti-SLAPP Analysis

CCP § 425.16 (the anti-SLAPP statute) is “a mechanism through which complaints that arise from the exercise of free speech rights can be evaluated at an early stage of the litigation process and resolved expeditiously.” (Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1073 [internal quotations omitted].)

Courts use a two-prong approach to determine whether an action is a strategic lawsuit against public participation, or a SLAPP. First, the court determines whether the defendant has established that the challenged claim arises from protected activity. (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) Second, the court, “determines whether the plaintiff has demonstrated a probability of prevailing on the claim.” (Ibid.)

i)

Prong One: Arising from Protected Activity

The first question this Court must answer is whether Cross-Complainant's claims arises from protected activity. To satisfy this first step, Cross-Complainant must show two things: a) that the defendants engaged in protected activity; and b) that the causes of action arose from that protected activity. (Colyear v. Rolling Hills Community Assn. of Rancho Palos Verdes (2017) 9 Cal.App.5th 119, 130.)

a) Did Cross-Defendant Engage in Protected Activity?

Under CCP § 425.16(b)(1), an Anti-SLAPP motion applies to, “[a] cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution.” (CCP § 425.16(b)(1) [emphasis added].) Under California case law, “[t]he filing of a lawsuit is an exercise of the First Amendment right to petition the government.” (Bonni v. St Joseph Health System (2021) 11 Cal.5th 995, 1024; see also Navellier v. Sletten (2002) 29 Cal.4th 82, 90.)

Thus, Cross-Defendant engaged in protected activity when she filed the underlying FEHA claim against Cross-Complainant.

b) Do Cross-Complainant's

Claims Arise out of that Protected Activity?

Next, the Court concludes that Cross-Complainant's claims for negligent and intentional misrepresentation arise out of this protected activity.

Under California case law, "[t]he filing of a lawsuit is an exercise of the First Amendment right to petition the government. Consequently, claims that arise out of the filing of a suit arise from protected activity for purposes of the anti-SLAPP statute." (Bonni v. St Joseph Health System (2021) 11 Cal.5th 995, 1024.)

Here, Cross-Defendant's nominal infraction was that they allegedly misrepresented their Section 8 status to Cross-Complainants. (Cross-Complaint ¶¶ 14-15, 20-21.) However, Cross-Defendant alleges that, "Cross-Defendant made said representation with the intent to induce Cross-Complainant to respond in a manner that could later be used to support a claim of housing discrimination." (Cross-Complaint ¶ 10.) Later, Cross-Complainant also alleges that, "Cross-Defendant made said representations with the intent to induce Cross-complainant's to act or respond in reliance thereon. So she could immediately file a lawsuit against cross complainant causing damage to cross complainant's reputation and causing cross complainant to incur costs and attorney fees." (Id. ¶ 21.) The specific language of these allegations – "with the intent to induce . . . so she could immediately file a lawsuit" – is crucial, as they allege that the act of making a misrepresentation was done in contemplation of bringing the underlying lawsuit. Thus, these claims of misrepresentation arise out of the filing of Cross-Defendant's lawsuit.[1]

In Opposition, Cross-Complainant argues that because the misrepresentations at issue were made before Cross-Defendant brought the underlying suit, these counter claims are independent from the judicial proceedings, and thus do not arise from protected activity. (Opp. p. 5:17-28.) The Court disagrees with this argument for multiple reasons. First, Cross-Complainant provides no case law in support of this argument. (Opp. p. 5:17-28.) Second, as discussed above, Cross-Complainant specifically alleges that Cross-Defendant made these misrepresentations with the intention of filing a lawsuit afterwards. (See e.g. Cross-Complaint ¶ 21.) Thus, as alleged, these actions were taken in anticipation of engaging in litigation.

c) Summary

In summary, both of Cross-Defendant's claims arise out of protected activity.

ii)

Prong Two: Likely to Succeed on the Merits

Now, the burden shifts to Cross-Defendant to show that both of these actions have merit. Once the burden shifts, the "[non-moving party] must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2006) 136 Cal.App.4th 464, 476 [internal quotations omitted].) In making the prong two determination, "the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (CCP § 425.16(b)(2).)

In their Opposition, Cross-Complainant provides only the sworn declaration of Niloo Bedrood, the owner of Cross-Complainant AK Group LLC. (Opp. Bedrood Decl.) Mr. Bedrood states that he received contradictory information from Cross-Defendant. Specifically, Mr. Bedrood states that, "Plaintiff represented that she qualified for Section 8 housing assistance." (Id. ¶ 8.) However, Mr. Bedrood also states that, "I reviewed a Zillow rental inquiry in which Plaintiff disclosed annual income of approximately \$87,500. Based upon that information, I concluded Plaintiff's stated income appeared inconsistent with eligibility for Section 8 housing assistance." (Ibid.) Thus, Cross-Complainant has provided sworn evidence that Cross-Defendant misrepresented their Section 8 assistance status. This suggests that Cross-Complainant's claims have merit.

In their Reply, Cross-Defendant objects to this statement by Mr. Bedrood, asserting it is an improper lay opinion, lacks foundation, and is irrelevant. (Evid. Objections, p. 3:16-25.) The Court overrules these objections. Mr. Bedrood is the owner of Defendant AK Group LLC, an apartment rental business. Thus, it follows that Mr. Bedrood would be familiar with Section 8 vouchers and their requirements. This assumption is further evidenced by Mr. Bedrood's sworn statement that he has previously rented to other Section 8 tenants. (Bedrood Decl. ¶ 7.) Thus, the Court does not find this statement to be an improper lay opinion or lacking in foundation.

That being said, Cross-Complainant's declaration does raise a separate issue as to damages. Damages are a necessary element of any claim for intentional or negligent misrepresentation. (Lazar v. Superior Court (1996) 12 Cal. 4th 631, 638; West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 792.) Here, Cross-Complainant has alleged that as a result of Cross-Defendant's misrepresentations, they "sustained damages according to proof." (Cross-Complaint ¶ 18.) More specifically, Cross-Complainant alleges that, "As a direct and proximate result of Cross-Defendant's conduct, Cross-Complainant has been forced to incur damages, including but not limited to costs of defending this action, attorney's fees, and other related expenses." (Id. ¶ 12.)

In their Reply, Cross-Defendant argues that these allegations and evidence show that Cross-Complainant has not suffered any damages. (Reply. p. 5:17-25.) The Court is inclined to agree. Costs and fees related to litigation are not recoverable as damages, absent a statute or contractual provision. (Kummeth v. Atkisson (1913) 23 Cal.App. 401.) Cross-Complainant provides no evidence or allegations of either. (See generally, Cross-Complaint.) Moreover, Mr. Bedrood states that, "Plaintiff never submitted a rental application for the subject property." (Bedrood Decl. ¶ 9.) If there was never a rental application for Cross-Complainant to review, it is unclear what incidental damages Cross-Complainant suffered as a result of these misrepresentations.

Additionally, Mr. Bedrood's statement that, "Plaintiff never submitted a rental application for the subject property" conflicts with their allegation that, "Cross-Complainant relied on Cross-Defendant's representations in evaluating her application and in responding to her inquiries." (Bedrood Decl. ¶ 9; Cross-Complaint ¶ 22.) Thus, it is also unclear how Cross-Complainant can establish reasonable reliance, a necessary element of both intentional and negligent misrepresentation. (Lazar v. Superior Court (1996) 12 Cal. 4th 631, 638; West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 792.) Therefore, Cross-Complainant appears to be unable to establish multiple elements of both of their claims as a matter of law.

In their Opposition, Cross-Complainant argues that this issue is not relevant because, "whether additional damages are ultimately recoverable is a question for later proceedings and is not properly resolved on an anti-SLAPP motion." (Opp. p. 7:12-13.) This argument misses the point. The second prong of an Anti-SLAPP analysis analyzes the merit of a potential claim. In this case,

the existence of damages is a required element of both challenged claims. Thus, it is Cross-Complainant's burden to show that they have evidence or sufficient allegations to support this element.

Therefore, the Court's tentative conclusion is that Cross-Complainant cannot establish that they were damaged by Plaintiff's misrepresentations. However, the Court intends to ask Cross-Complainants for clarification on this issue at the hearings. If Cross-Complainants can explain how they were harmed beyond the inconvenience and costs of being taken to court, the Court may exercise its discretion and continue the hearing on this motion to allow for further evidentiary briefing.

For these reasons, the Court TENTATIVELY GRANTS Cross-Defendant's Anti-SLAPP Motion to Strike the Cross-Complaint.

Costs

Next, Cross-Defendant requests \$3,365.02 in costs associated with this motion. (Anti-SLAPP, pp. 6:23-7:9.)

A prevailing defendant on a special motion to strike "shall be entitled" to recover

attorney's fees and costs. (Code Civ. Proc., § 425.16(c).) The award is mandatory: "[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.) Given that this Court has tentatively granted Cross-Defendant's motion, an award of costs is mandatory.

In Opposition, Cross-Complainant does not challenge Cross-Complainant's costs in any way. (See generally, Opp.) Therefore, the Court GRANTS Cross-Defendant's request for \$3,365.02 in costs.

Conclusion

The Court TENTATIVELY GRANTS Cross-Defendant's Anti-SLAPP Motion to Strike the Cross-Complaint. The Court TENTATIVELY GRANTS Cross-Defendant's request for \$3,365.02 in costs.

IT

IS SO ORDERED, Defendant TO GIVE NOTICE.

September 11, 2026

Judge of the Superior Court

[1]

While at first glance this appears to be a strange outcome, the most appropriate analogy here would be that of an ADA tester. If a company sued an ADA tester for lying to them while hunting for infractions to sue over, the lawsuit against the ADA tester would almost assuredly “arise out of” the tester’s protected activity, even though the actions they took predated the eventual lawsuit.